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Mary Simon

Canadian Inuit

Where we have been and where we are going

Let me begin with terminology. Reflecting current Inuit usage, the name used for the entire area of lands and waters that make up the four Inuit homelands across the circumpolar Arctic, stretching from Chukotka to Greenland, is *Inuit Nunaat*, and the name used to describe the Inuit homeland within Arctic Canada is *Inuit Nunangat*.

In order to consider the first half of the challenge posed by the title of this article—how Canadian Inuit have come to be where we are today—we must consider some geography and some history. The Arctic is roughly one-third of Canada's land and marine mass, with 50 percent of Canada's shoreline. It is the homeland of Canada's Inuit.

We are some 55,000 in number, approximately one-third of the total Inuit population living around the circumpolar world, in Chukotka, Siberia, Alaska, Greenland, and Canada. There are 53 Inuit communities in Arctic Canada, numbering from a few hundred to more than 5000 inhabitants.

Inuit are the solid majority of the permanent population in the Canadian Arctic as a whole. We are also a clear majority in all permanent communities,

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with the exception of Inuvik and Iqaluit. Inuit are also becoming more numerous in some southern cities, such as Ottawa, Montreal, Winnipeg, and Edmonton.

Inuit have lived in the Arctic since long before historical records. Our existence in the Arctic was built around the opportunities, risks, and realities of a hunting and gathering way of life. Until relatively recently, most Inuit lived a nomadic lifestyle with very little contact with the outside world. There are Inuit living today who were young adults before they ever encountered non-Inuit.

We lived on the land, hunted, gathered, and fished. We organized ourselves around immediate and extended family. We spoke a very complex and nuanced language.

The depth of contact between Inuit and European peoples was limited on a day-to-day basis before the first half of the 20th century. But our relationship to the world changed forever as a result of that contact. From the time of Martin Frobisher's ill-fated voyage and continuing through centuries of activities involving naval ships, whalers, traders, missionaries, police, and public servants, Inuit have been engaged in an ever-evolving intersocietal relationship with *qablunaaq* (our word for non-Inuit people).

More specifically, we have experienced a tight political and legal relationship with the crown—first the British imperial crown and then with the crown in right of Canada. In the period leading up to the 1960s and 1970s, the relationship between the Europeans and Inuit was a grossly one-sided one. We Inuit suffered a steady loss of control over our ability to make decisions—decisions for ourselves and for the lands and waters that have sustained us for thousands of years. We became a colonized people. We were pushed to the margins of political and economic and social power in *Inuit Nunangat*.

The low points of this one-sided relationship were experienced in the period when entire family camps were wiped out by measles, when Inuit households were coerced into relocating thousands of miles in order to serve agendas developed elsewhere, and when Inuit children were taken away to residential schools.

A society's loss of control cannot be illustrated more pointedly, or more painfully, than through the forced rupturing of the bonds between parents and children. Within a few generations, Inuit were forcibly resettled. We were converted to a new religion, and that religion was presented as hostile to many aspects of our old culture.

We suffered terribly from contagious diseases. Our children were dispatched to residential schools. And we saw family members sent to tuberculosis sanitariums, some never to return. We became part of what many Canadians viewed as Canada's "native problem." We were caught up in policies seeking assimilation on the one hand, and the relentless push to extract or develop natural resources in the interests of Canadians on the other. Our rights as aboriginal peoples—let alone our preferences and sensibilities—were not part of the picture.

This lack of voice, this invisibility—even close to home—was painfully apparent in our early efforts to engage the rest of the world.

In his book *Who Owns the Arctic*, University of British Columbia law professor Michael Byers relates a telling story: "John Amagoalik, as the former president of the Inuit Tapirisat of Canada, recalls attending a meeting of the United Nations where a foreign diplomat blithely stated that 'nobody lived in the Arctic.' Amagoalik approached the diplomat afterwards, held out his hand, and said 'Hi, I'm nobody'."

Yet we did not reconcile ourselves to our colonization or our marginalization. We mounted a great effort, along with First Nations and Métis peoples in Canada, to make our voices heard. We did everything we could to reassert our say over our lands and waters of *Inuit Nunangat*. And over our future.

To make our case, we used meeting halls. And the airwaves. And negotiating tables, when we could get people to talk to us. And when we couldn't, the courts. And even from time to time, the streets.

Starting in the 1960s, a succession of young Inuit decided to take on the larger society that had colonized us and to regain at least a degree of control over our own lives. We did this by studying the larger features and assumptions of Canadian society and by deciding how we could develop and promote a political agenda that would adapt and employ those features and assumptions to our benefit.

In the late 1960s and 1970s, we quickly came to see three major opportunities available to us. First, new issues of common-law aboriginal title and aboriginal rights arose in a series of landmark court cases. These court cases reopened what had been considered long-settled case law rejecting legal rights flowing from aboriginal use and occupation.

Second, there was the growing search for constitutional reform in Canada. This was fuelled largely by Québec's restlessness but was accompanied by other issues, such as guarantees for fundamental protection of individual and minority rights.

And third, the internal map of Canada left much of the Arctic—for example, the Northwest Territories and regions such as nouveau Québec and northern Labrador—in what could be described as a holding category. The Arctic was removed from mainstream political focus, but at the same time also removed from some traditional brakes and barriers to political change.

Our land claims agreements with the crown—modern treaties—and other political achievements have opened a new chapter. These large regional modern treaties began with the James Bay and northern Québec agreement in 1975, and continued until the Labrador Inuit agreement in 2005. They form a continuous chain across the Canadian Arctic from the Alaska border to the Labrador coast. For Inuit, the modern treaty-making process is virtually complete, and common-law Inuit rights have now been written into our modern treaties.

These treaties are all protected by section 35 of the 1982 constitution act. They have interpretive primacy over any conflicting federal, provincial, and territorial laws. Together, these treaties make Inuit the largest non-crown landowners in Canada by considerable distance. Much of this land has rich mineral potential. The treaties have provided Inuit with certain capital funds to run Inuit organizations and to help kick-start economic development ventures. These property rights and benefits work alongside a restructured jurisdictional world.

The treaties, directly and indirectly, have given rise to the creation of the Nunavut territory, with a strong Inuit majority of citizens. They also form the basis of new and enhanced regional and municipal government structures and powers in other Inuit regions outside Nunavut. The treaties have created new, more coherent regulatory machinery for the management of lands, waters, and wildlife, and for the review of development project proposals.

Appointments to joint resource management boards are made both by senior governments and by representative Inuit organizations. The various proprietary and jurisdictional features of the treaties are complementary. They work together to deliver a decisively rebalanced distribution of power between Inuit and the crown, and, by extension, between the Inuit residents of Inuit Nunangat and Canadians living in southern Canada. They govern how development will take place. They guarantee a strong, if not exclusive, role for Inuit in the assessment of development proposals.

These agreements do not give Inuit an unqualified veto on most forms or occasions of resource development. They do, however, create a kind of big-ticket tripwire, with a very clear message attached, which is that proponents of major development projects in the Inuit homeland should

actively seek Inuit partners. And, in all cases, they must turn their minds to how their proposals can deliver maximum benefits to Inuit communities and households as well as to their shareholders.

Our treaties have been creative and constructive in providing a more predictable and inclusive business environment in the Arctic. They highlight our great determination to achieve a new level of economic self-sufficiency, and to do so in ways that bring our cultural values into the new economy.

But treaties only reach so far. For all their creative and constructive contents, the rebalancing of intersocietal power through our treaties must operate alongside the logic and discipline of free market forces. Treaties do not decide the costs of extracting and shipping minerals or the cyclical nature of global commodity prices.

Our political breakthroughs have occurred in the midst of ongoing and still-unresolved economic hardships and challenges. Today in the Arctic, the cost of living is staggering. I can fly economy class at least twice from Toronto to Hong Kong for the same price as flying from Toronto to a community on Baffin Island. Foods and commodities that supplement traditional country foods are very expensive. Country foods continue to be a very important part of our culture and daily lives, yet hunting has become increasingly expensive. Tens of thousands of dollars are required to be properly equipped as a hunter. Gas prices push costs ever higher. Incomes are often shared to support a hunter within a family in order to assure access for the whole family to country food. With few exceptions, there are no road connections to the rest of Canada. Transportation is by air and sea. Geography presents Inuit with many serious and stubborn challenges. These challenges reinforce many of the difficulties left behind by history.

We are still paying a heavy price for the legacy of colonization and for the societal stresses that accompanied rapid and intense changes. The pace of these changes has been breathtaking. It has few parallels in the developed world.

Sixty years ago, most Inuit were still living on the land. Inuit followed the seasonal rhythms of migrating wildlife of animals and conformed to age-old traditions of hunting and fishing, confident in their abilities and secure in their place in the universe. Today, we are experiencing youth suicide, violent deaths, and substance abuse at record levels. We grieve for these things. We struggle to find a path forward.

Here are just a few, though graphic, facts. We have far lower educational outcomes than other Canadians. Our high school noncompletion rates are often in the 75-percent range. Our housing conditions remain well below

Canadian standards. Our health indicators continue to lag behind the rest of Canada. For example, our incidence of tuberculosis is such that if we were not already citizens of Canada, we would not be allowed entry into the country. Substance abuse plagues our families and communities. The suicide rate is 11 times the Canadian average and most suicides are young people. The enormous cost of imported food, combined with the cost pressures that complicate the reliable supply of traditional country food, have made hunger a major problem. A recent Canadian Medical Association journal article documented that more than 70 percent of households in Nunavut with preschool children experience food insecurity in the course of the year.

It is not acceptable for citizens of Canada, a G8 member, to be suffering this level of fundamental socioeconomic distress. It is not acceptable to let facts such as these become paralyzing rather than motivating.

We do not believe that other Canadians are antagonistic or ill-disposed towards us. We continue to hope that other Canadians seek and support creative solutions to our issues in ways that will benefit us and Canada as a whole.

We are not silent or passive. Despite the tremendous distances, the Arctic is now connected by modern communications technologies to the rest of Canada and the world. We seek to make the best use of the limited investment capital at our disposal or within reach. We own air and marine transport companies, fishing companies, service industries for oil and gas development, and we are joint-venturing with various business enterprises. We are using our political organizations at every level—national, provincial and territorial, regional, and community. We use them to steer available public sector investment towards key economic drivers, and notably towards basic infrastructure in the form of such things as small craft harbours, broadband, and every available aspect of education and training.

Prime Minister Stephen Harper has talked about Canada's natural resource wealth in numerous speeches before business audiences in Canada and abroad. He has predicted that this wealth, particularly in Arctic and sub-Arctic regions, positions Canada to become a mineral and energy superpower. Much of Canada's mineral potential is within *Inuit Nunangat*.

Inuit are conscious that many factors contribute to our facing a level of uncertainty that is as great as virtually any other society on earth. We are experiencing historic disempowerment, pressures of rapid cultural adaptation, and a young and rapidly growing population, not to mention being what has been called the "canary in the mineshaft" with respect to the regionalized impact of global climate change. The future threatens to be

something of a roller coaster ride. But we are mindful that change can be for the better as well as the worse. Vulnerability may increase the stakes without predetermining the outcomes.

The second part of my article speaks to the future: as Canadian Inuit, where are we heading? Two things jump out immediately in relation to such a question. The first is that none of us can predict the future with much confidence or precision, so any comments must necessarily be speculative. The second is that the future can be assessed from an enormous variety of vantage points, and any choice of such vantage points must be subjective and limited in its reach. There are three key concepts I would like to consider in this article: sovereignty, resource development, and security.

These matters are very much interconnected. They can be, and often are, discussed in highly technical terms by people who have highly specialized credentials and knowledge in a variety of related subject areas: international and domestic law, political theory, public administration, military strategy and tactics, and risk theory, to name just a few.

Highly specialized expertise is of vital importance in sound policymaking and decision-making about the Arctic. But it also important to remember that expertise must serve, not supplant, the need for informed and accountable choices for the Arctic that tie together a range of dimensions and difficulties, and the need for focused political awareness and effective political process.

In Inuit politics, we proceed from the truth that we are a people. We have always known—in our heads and in our hearts—that we are a people. And the outside world has come to accept this. Anthropologists have always taken our status as a people to be self-evident: after all, we have, over a very long period of time, inhabited a discrete part of the world in possession of a distinct language and culture.

In more recent times, our status has figured prominently in both domestic and international law and politics. Students of Canadian history and politics will recall the constitutional amendments of 1982 that recognized Inuit as one of the three aboriginal peoples of Canada. That constitutional recognition is supported by the constitutional protection given to the chain of land claims agreements—modern treaties—that chart governance of the regions of Inuit Nunangat stretching across the Canadian Arctic from Nunatsiavut in Labrador to the Yukon/Alaska border.

At the international level, the United Nations declaration on the rights of indigenous peoples, adopted by the general assembly of the United Nations in September 2007, asserts the rights of indigenous peoples around the world, including the core right of self-determination. Inuit have taken

the initiative in connecting wider developments in law and politics to specific issues of sovereignty and governance in the Arctic. In April 2009, circumpolar Inuit representatives adopted and released a document entitled “A circumpolar Inuit declaration on sovereignty in the Arctic.”¹

That declaration asserts confidently and forthrightly that Inuit are an indigenous people of the world with the rights and responsibilities of all indigenous peoples, including the right to self-determination; the right freely to pursue our economic, social, cultural, and linguistic development; and the right freely to dispose of our natural wealth and resources. States are also reminded of their obligations to indigenous peoples under a variety of international agreements.

The declaration does not assert the identity of Inuit as one of the world’s indigenous peoples as a substitute for, or an alternative to, being citizens of the four Arctic states in which we live. Rather, it states that Inuit rights as an indigenous people, and Inuit citizenship in the four Arctic states, are not incompatible.

The Inuit of Canada take pride in being both Inuit and Canadian. At a time when issues of sovereignty in the Arctic have been very much in the news, including disagreements as to assertions of sovereignty and sovereign rights by Arctic states, the declaration offers a reminder that the concept of sovereignty must necessarily be situated within a wider body of still-changing international law.

Finally, the declaration clearly articulates the desire by Inuit to develop innovative and creative jurisdictional arrangements that balance our rights and responsibilities with those we share with others living with us and those of states.

Given the importance of Inuit to matters of sovereignty and governance in the Arctic, what can be done in Canada to accommodate that fact? In answering that question, it is useful to turn to a presentation made by Inuit Tapiriit Kanatami to the house of commons committee on national defence on 29 September 2009. Inuit prize highly the role of parliament as the touchstone and guardian of our democratic way of life in Canada. Inuit Tapiriit Kanatami made six key recommendations in that presentation, which can be summarized as follows.

First, in all its key assertions as to sovereignty and sovereign rights in relation to Arctic lands and waters, the government of Canada should

¹ “A circumpolar Inuit declaration on sovereignty in the Arctic,” adopted by the Inuit Circumpolar Council, www.itk.ca.

acknowledge the central importance of Inuit use and occupation of the lands and waters of Inuit Nunangat since time immemorial. The history of Inuit use has been acknowledged at various times and at various places in the past: for example, the 1930 understandings with Norway with regard to the Sverdrup Islands recognized the critical importance of Inuit hunting activity. Consistency in acknowledging Inuit use and occupation is not just a matter of effective advocacy before an international audience. It is also a matter of fundamental respect.

Second, coherent government of Canada policymaking for the Arctic must be built around the idea of a core partnership relationship with Inuit. The circumpolar Inuit declaration on sovereignty in the Arctic put it this way:

The inextricable linkages between issues of sovereignty and sovereign rights in the Arctic and Inuit self-determination and other rights require states to accept the presence and role of Inuit as partners in the conduct of international relations in the Arctic.²

The idea of partnership with Inuit is even more compelling in the domestic policy context. To be credible and constructive, partnership must be more than tokenism or lip-service. Any Arctic strategy worth pursuing must put working with Inuit at its heart, not at the periphery.

Third, partnerships that are not built on trust will always fail. And trust requires, at its most basic level, confidence that promises made are promises kept. Unfortunately, some baseline promises made to Inuit are still unfulfilled. The most compelling examples of this are found in the billion-dollar lawsuit that Nunavut Inuit had to initiate in the fall of 2006 because the government of Canada would not act on a conciliation report on how to implement fairly the promises made in the Nunavut land claims agreement. That's simply not good enough.

Fourth, the government of Canada cannot expect the world to give full respect to arguments built on Inuit use and occupation of Arctic lands and waters when Inuit continue to lag so far behind other Canadians in relation to such things as minimum education, health, and housing standards. The world will increasingly tie assertions of sovereignty to questions involving other expectations of the international community, including expectations as to the treatment of aboriginal minorities and regard for key environmental considerations.

2 Ibid., section 3.3.

Inuit are a patient and practical people. We know that the economic and social problems that we face did not come about overnight, and will not be remedied overnight. We know that most of these problems are problems of history and circumstance, not prejudice or bad intentions.

But we also know that sovereignty will not be enhanced if it ignores or understates the basic material needs of the permanent residents of the Arctic, or fails to understand that the alienation of the young is the surest way to undermine respect for the law and toleration for others. In that very real sense, sovereignty must begin at home.

Fifth, partnership with Inuit in the Arctic cannot be divorced from the government of Canada's willingness—or unwillingness—to stand up for aboriginal rights everywhere. The government of Canada should develop, in concert with Canada's aboriginal peoples, an ambitious plan to implement, within Canada, the UN declaration on the rights of indigenous peoples. And the government of Canada's broader reputation and capacity in relation to Arctic issues would be enhanced by the reappointment of an Arctic ambassador.

Sixth, for Inuit, the concept of a highly visible, highly durable partnership has more than symbolic and moral weight, however important that is. A creative partnership also opens the possibility of tackling challenges in ways that could be freshly beneficial for Inuit and for Canada as a whole. For the sake of illustration, it might be productive to explore the possibility of a joint Inuit-federal government Northwest Passage authority that would offer a proactive regulatory regime against the expected increase in ship traffic while at the same time respecting the history of Inuit use and the central importance of sustainable economic development for Inuit communities.

These recommendations become more pressing when forecasts for resource development in the Arctic are taken into account. We are determined to set appropriate conditions on Arctic resource development because the primary responsibility for doing so rests with us. And, in the final analysis, the only satisfactory assurance that it will be done rests with us.

That is the core, the consequence, and the burden of self-determination. Why does the world need to pay attention to our conditions on development? There are two sorts of reasons, practical and moral. One practical reason is the sheer size of what is at stake. To use just one well-known example, the US Geological Survey estimates that one-fifth of the world's undiscovered oil and gas resources lies north of the Polar circle, and as the Greenland minister for industry and mineral development has recently noted, oil has the greatest potential to help us achieve economic independence. Other

practical reasons turn on the reality that, as one of the indigenous peoples of the world, Inuit have made maximum use of the evolving principles and processes of domestic and international law to secure recognition of the fundamental rights and interests that flow from our being the first inhabitants of Inuit Nunangat and that also flow from our continuing to be the majority of residents of Inuit Nunangat. In the domestic arena, we have secured our rights and interests through a variety of means and instruments, including constitutional recognition, statutory recognition, modern treaties, interjurisdictional agreements, self-government agreements, and new territorial and regional governments. The list is as long as our opportunities and imaginations have taken us. And we haven't finished yet.

These domestic arrangements do not add up to our having unqualified control of our traditional homeland. They do add up to a formidable amount of power-sharing between Inuit and the four Arctic states in which we live. Developers should not expect to operate in the mixed jurisdictional and political realities of our world, including with regard to regulatory procedures and approvals, without having Inuit onside. In some cases, having Inuit onside will take the form of active Inuit partnership in all commercial dimensions of specific developments. In some cases, having Inuit onside will take the form of free, prior, and informed Inuit consent. But whatever the form and diversity of Inuit participation, the willingness of Inuit to support major projects is now a critical factor at every level, from front-end exploration back to the head offices of investment bankers.

The strength of our domestic power-sharing arrangements is reinforced by the growing status and profile of indigenous rights as a fundamental part of human rights at the international level. For all sorts of reasons, respect for legal rights and interests makes practical business sense.

Respect for the wellbeing of indigenous peoples also commands compelling moral authority. The history of the globe is beset with indigenous peoples cast crudely to one side in the race for lands and resources. Building a peaceable and sustainable planet gives all of us ample incentive—and ample responsibility—to turn to more collaborative, constructive, and respectful approaches. Inuit are not just the traditional hunters and gatherers of Inuit Nunangat.

We have the vocation to be the frontline environmental watchdogs and police. This does not make us hostile to new forms of development or locked into a kind of paralyzing nostalgia for the days of old. It does, however, make us a critical force in ensuring that the development of Arctic resources is done in ways that are measured, informed, transparent, and accountable,

and that make the wellbeing and cultural continuity of Inuit necessary and central considerations.

The risks associated with striking the right policy balance have been greatly amplified by the reality of climate change. The Arctic has been thrust into the forefront of climate change. This is not where Inuit want to be. Inuit have been ringing the alarm bell over climate change for decades. Our people have been observing environmental and ecological changes with increasing apprehension.

It was not until these concerns were validated by the scientific community that the world turned its attention north. The 2010 climate change report card issued by the US National Oceanic and Atmospheric Administration has reported record-breaking temperatures in the Arctic, massive ice loss through melting, melting permafrost, and low winter snow accumulation. Arctic melt and rising sea levels are intimately connected. Sea-level rise may be one of the most destructive effects of climate change worldwide. Whether you live in a mansion in the Florida Keys or a tin and cardboard shack in Bangladesh, the sea will rise with horrific consequences.

At Inuit Tapiriit Kanatami our strategy is twofold. First, we continue to support and lobby for international, national, and regional efforts to curb carbon emissions, and second, we accept that some impacts are inevitable and that adaptation strategies must be set quickly in place.

To summarize, our message with respect to Arctic resource development is as follows: First, we are realistic. Nonrenewable resource development is needed in Inuit Nunangat as part of building up Inuit economic self-sufficiency. All economic activity carries with it a degree of environmental risk, but the lessons from the Gulf of Mexico blowout must be learned and applied in the Arctic. This will require both a time-out and a determination to use best practices from around the world.

Second, the old days of Inuit being passive observers to fundamental decisions being made about our homeland are dead and buried. No approach to resource exploration development in the Arctic will be successful unless we are full partners and we draw direct and substantial benefits. This last message was forcefully made and upheld by the Nunavut court of justice in a successful application last summer by the Qikiqtani Inuit Association for an injunction to halt seismic mapping authorized by the Canadian government in Lancaster Sound.

Paul Berkman, a leading British expert on polar issues, argues that a "high-level, peace-oriented diplomatic vision is the missing ingredient

needed to ensure the safe and orderly development of an increasingly accessible Arctic.”³ We couldn’t agree more.

At the end of February 2011, circumpolar Inuit leaders met for two days in Ottawa and committed to complete “A circumpolar Inuit declaration on resource development.”⁴ The declaration was then released to coincide with the meeting in Nuuk, Greenland, of the Arctic Council. Inuit invite you to give careful attention to its contents and implications.

This article does not speak in detail about security issues in the Arctic, particularly the perceived need, effectiveness, or affordability of particular types of weapons systems and other forms of defence preparations. Inuit, of course, seek a peaceful Arctic in a peaceful world. We are not invited to participate, as Inuit, in the closed-door domestic and international conversations about big-power and big-picture military strategies and tactics for the Arctic. We do subscribe to the concept that security should be understood in a broad sense. Just as health is more than the absence of disease, so, too, security is more than the absence of military conflict. With that view, Inuit will continue to advance what we believe are constructive and reasonable ideas for Arctic policymaking and decision-making—decision-making that respects and provides sustainable benefits to the Inuit majority of Inuit Nunangat, as well as to humanity as a whole.

3 Paul Berkman, interview at the second international Arctic Forum for Dialogue, Akhangelsk, Russia, September 2011.

4 “A circumpolar Inuit declaration on resource development,” Inuit of Inuit Nanaat, February 2011, www.inuitcircumpolar.com.